NewsBank inc.

I love drinking outdoors

April 8, 2021 | San Francisco Examiner (CA)
Author: Stuart Schuffman | Section: News Columnists | 852 Words
OpenURL Link

I love seeing people drink in the streets. I don't care if it's debauched glug at Bay to Breakers, a long, slow pull from a brown-bagged tallboy, or a little nip from a flask of pocket whiskey. I genuinely smile every time I see it.

Why? Because so many of our laws around alcohol consumption are stupid. Like it's absurd that establishments need a special license to allow patrons to drink outside. If a place can legally serve booze outdoors, and if a patron steps one foot beyond the irrational borders decided by the state Department of Alcoholic Beverage Control, the place can get fined or shut down. It's even stupider that people can't legally have a beer while they walk home or technically have a glass of wine in the park. Hell, we can send soldiers out to die in some bullshit war when they're 18, but that same person can't have a legal drink in the country they are fighting for.

Now don't get me wrong, we are incredibly lucky to be in California where our liquor laws are far looser than most other parts of the country, and yes, I 100% support strict laws against drunk driving. But the puritanical prudishness that this nation was founded on still infects way too much of our modern laws.

That's why it has been such a treat to see the ABC unclench its butt a little during this pandemic to allow to-go drinks and expand outdoor drinking to sidewalks, alleys, and parklets. Back in March of 2020, the ABC issued a Notice of Regulatory Relief which was "designed to support the alcoholic beverage industry in its efforts to assist California in slowing the spread of the virus while assisting the industry in dealing with the economic challenges it is facing as a result." And just like that, the ABC reified something that we already knew: Most of these laws were completely arbitrary and weren't actually doing anything to make us safer from the perils of alcohol. Beyond that though, this regulatory relaxation saved thousands of businesses.

Ask any restaurant or bar owner whose spot has managed to survive the pandemic thus far. They will tell you that the ability to sell to-go and outdoor drinks has been the thing that has kept them afloat. The food and beverage industry was brought to its knees by this terrible plague, millions of people lost their jobs, thousands of places that act as community anchors shut down, and the action that staved off even further decimation was the loosening of these nonsensical laws.

Now, though, as the end of the pandemic is in sight, the hope is that the ABC will admit the laws were stupid all along, and allow outdoor drinking to continue. At the moment, it could go either way.

On the FAQ section of the ABC site, it says "These are temporary measures intended to provide immediate relief during this crisis only. ABC will not continue the policies contained in the Notice of Regulatory Relief when the pandemic has ended. We will follow the lead of the governor and the health experts to determine when the pandemic has concluded, and when these temporary policies under the Notice of Regulatory Relief will cease."

Luckily, there are a few folks on a state and local level fighting the good fight for us. In March, Mayor Breed introduced legislation to allow San Francisco businesses to keep parklets permanently. This seems to be quite popular and should be passed by summertime.

On the state level, Sen. Scott Weiner from San Francisco introduced Senate Bill 314 which, if passed, would make it permanently legal for places to serve alcohol in parklets, alleys and sidewalks. Along similar lines is Assembly Bill 61 which was introduced by Assemblymember Jesse Gabriel, who represents the 45th District, covering much of the west San Fernando Valley. If passed, the law would help remove some asinine requirements businesses have to navigate in order to serve alcohol to outdoor diners, and it will help streamline the creation of more permanent outdoor dining.

At this point I know many of us are tired of shivering outdoors in order to have beer and a meal in public. But once the world opens up more, we'll all be glad to have the option to dine and drink outdoors should we want to. The old laws are senseless and we've found this out by not having to follow them for over a year. By keeping outdoor dining, we'll be allowing bar and restaurant proprietors to have more customers, which will help them get on their feet and hopefully stay that way. If you agree, spread the word to people you know in California and tell them to reach out to their representatives and insist they support SB 314 and AB 61.

In the meantime if I see you walking around with a little pocket whiskey I'll be sure to tip my hat in your direction and give you a big fat smile.

Stuart Schuffman is a travel writer, TV host and poet. Follow him at BrokeAssStuart.com and join his mailing list at http://bit.ly/BrokeAssList. He is a guest columnist and his point of view is not necessarily that of the Examiner.

alcohol tradeCaliforniaFood and WineSan Francisco

Copyright © 2021 San Francisco Examiner.

- **Citation (apa Style)**
  Schuffman, S. (2021, April 8). I love drinking outdoors. *San Francisco Examiner (CA).* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/181BFBACADA063B0.